

Stereo.HCJDA 38.
JUDGMENT SHEET.
LAHORE HIGH COURT,
RAWALPINDI BENCH RAWALPINDI.
JUDICIAL DEPARTMENT

WRIT PETITION NO.1260 OF 2022

LIAQUAT ALI KHAN and others

versus

SENIOR MEMBER BOARD OF REVNUUE and others.

JUDGMENT

Dates of hearing: **01.04.2026.**

Petitioners by: Chaudhary Umar Hayat, Advocate.

Petitioners in W.P.No.977 of 2023 by: Sardar Bilal Firdous, Advocate.

Respondent No.2 by: Mr. Muhammad Zafar-ul-Hassan Joiya,
Advocate.

Ms. Rahat Farooq Raja, Assistant
Advocate General, Punjab.

Muhammad Afzal Hiraj, Tehsildar and
Muhammad Uziar, Naib Tehsildar, Pindi
Gheb. Muhammad Saeed Khan, Patwari
Halqa Toot and Atif Mehmood Patwari
Halqa Parri.

Mirza Viqas Rauf, J. This single judgment shall govern titled petition *i.e.* W.P.No.1260 of 2022 as well as W.P.No.977 of 2023, being arising out of the same notification and raising similar question of facts and law as well.

2. Facts in brief, necessary for adjudication of these petitions are that the petitioners are owners of land situated in the revenue estates of Parri and Toot, Tehsil Pindi Gheb, District Attock. In both the revenue estates, consolidation proceedings were started a long ago and even the scheme to the extent of former was confirmed. Through notification dated 21st February, 2022 (hereinafter referred to as “**Impugned Notification**”), the respondents decided to abandon the consolidation

proceedings and instead started the settlement operations. The petitioners, being aggrieved, are now before this Court in constitutional jurisdiction. In response to the notice, the respondents submitted their report and parawise comments wherein they asserted that in exercise of powers conferred by Section 40 read with Section 4(9) and 116 of the Punjab Land Revenue Act, 1967 and all the powers under the Punjab Consolidation of Holdings Ordinance, 1960, Board of Revenue has directed to start settlement operations in the revenue estates of Parri as well as Toot with immediate effect in public interest to determine number of ownerships, computerization of revenue record and consolidation of holdings operations, being carried out in the aforementioned revenue estates shall be abandoned with immediate effect.

3. Arguments have been addressed by both the sides at considerable length, pro and contra to the issues involved herein. In order to appreciate the respective contentions, I have perused the record.

4. In order to consolidate and amend the law relating to consolidation of holdings in the Province, the Punjab Consolidation of Holdings Ordinance, 1960 (VI of 1960) (hereinafter referred to as “**Ordinance**”) was promulgated. Section 3 of the Ordinance bestows an authority upon the Board of Revenue or any officer authorized by it in this behalf to move the consolidation officer for the consolidation of holdings in an estate or a sub-division. In addition thereto, any two or more land owners in an estate or a sub-division holding together not less than the minimum area of land prescribed in this behalf may make an application in writing to the consolidation officer for the consolidation of their holdings.

5. The question raised in these constitutional petitions is not related to the validity of initiation of the consolidation proceedings as there is consensus on both ends that the consolidation proceedings were set into motion in terms of the **Ordinance**. The core issue which emerges with the issuance of **Impugned Notification** is related to the competency of

the respondents to abandon the consolidation proceedings. In order to properly comprehend the moot point, it would be advantageous to have resume of the facts resulted into issuance of the **Impugned Notification**, which is an offshoot of recommendations conveyed by the Collector (Consolidation), Attock to the Additional Commissioner (Consolidation), Rawalpindi Division, Rawalpindi through its letter No.6 Collector (Cons)AK dated 19.01.2022. which reads as under: -

From
The Collector (Consolidation),
Attock.

To
The Additional Commissioner (Cons),
Rawalpindi Division, Rawalpindi.

No.06 Collector (Cons)AK dated 19.01.2022

Subject: MOUZAS UNDER CONSOLIDATION/SETTLEMENT IN RAWALPINDI DIVISON.

Please refer to Board of Revenue Punjab letter No.52-2022/0059-CH(G)IV dated 18.01.2022, with reference to the minutes of the full board meeting held on 07.01.2022, regarding progress of consolidation work.

It is submitted that following 7 villages are in under-consolidation in Rawalpindi Division. There is no mouza in settlement under the control of the undersigned.

S.No.	Name of District	Name of Tehsil	Name of mouza under consolidation	Starting date	Remarks
1.	Attock	Pindigheb	Toot	11.03.93	The said mouza was came into consolidation wing on 11.03.1993. now, the work of khatao Raqba is under process, 200 schemes written out of 942.
2.	Attock	Pindigheb	Nulhad	01.01.70	The scheme of the said mouza was confirmed on 30.10.1980 and reviewed by the Addl: Commr (Cons), Rawalpindi dated 12.11.1985. Now the work of Register scheme (Khana Milkiat is completed.
3.	Attock	Pindigheb	Parri	02.06.99	The said mouza was came into consolidation wing on 02.06.1999. The scheme of the said mouza was confirmed on 30.06.2002, and reviewed by the learned Member (Cons), B.O.R Punjab, dated 21.07.2006. Now, the work of Khatuni Ishtimal is under process.332 Khewats has been written out of 379.

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4.	Attock	Pindigheb	Chakki Thoha	04.10.93	The Mouza Chakki Thoha was came into Consolidation wing on 04.10.1993. The scheme of the said mouza was confirmed on 30.06.2001, and reviewed by the learned Member (Cons), B.O.R Punjab, Lahore vide his order dated No.407-02/199(G)II dated 17.08.2002. Now the work of Naqsha Haqdar is under process
5.	Attock	Jand	Basal	23.06.87	The said mouza was came into consolidation wing on 23.06.1987. The scheme of the said mouza was confirmed on 30.06.1996, and reviewed by the Addl Commr (Cons), Rawalpindi dated 07.10.1998. Now the work of Musadawa scheme is under process.
6.	Jhelum	Jhelum	Khurd	18.07.90	The said mouza was came into consolidation wing on 18.07.1990. Now the work of Register Scheme (Khana Milkiaat No.1 to 4) is completed. The work of Tasdeeq Moqa Jat is under process.
7.	Jhelum	Deena	Pindi Rajwal	29.11.16	The consolidation operation has been completed. Only one complaint/case is under hearing in the Court of learned member (Cons),

The requisite information has been called from the Consolidation Officer, Attock/Pindigheb and Jhelum. The report submitted has been examined. The landowners of mouzas under consolidation are not taking interest for consolidation proceedings and their non cooperative attitude is causing delay for completion of consolidation proceedings since long. Furthermore issues of 'shamlat land' are also a crucial hurdle among the land owners. Besides, extending residential areas and newly developed road network has changed the entire spot situation. These areas have now become valuable properties and occupant landowners are hesitant to go into consolidation of land.

In view of the prevailing situation narrated above, the consolidation officer has recommended that completion of record of mouzas mentioned at S.No. 1 to 6, at this stage, is possible only through settlement instead of consolidation operation. Preparation of record through settlement is easier than consolidation proceedings as there is no involvement of private persons. The record can be prepared within short term of time as compare to consolidation proceedings. There will be least chances of only correction of record in settlement proceedings instead of consolidation scheme.

Therefore it is recommended that subject matter may kindly be forwarded to competent authority (B.O.R) for further appropriate action/orders.

The above recommendations were then forwarded by the Additional Commissioner (Consolidation), Rawalpindi to the Secretary (Consolidation) Board of Revenue, Lahore in furtherance whereof, the **Impugned Notification** was issued.

6. Before proceeding further, it would be apposite to observe that except Section 13 of the **Ordinance**, there is no specific provision dealing with the subject. Section 13 bestows power of revision upon the Board of Revenue and the Commissioner as well as Collector to call for and examine the record, which reads as under:-

13. Power to call for and examine record.– (1) [The Board of Revenue] may–

- (a) at any time of its own motion call for the record of any proceedings under this Ordinance pending before, or disposed of by any Revenue Officer or Consolidation Officer; or
- (b) on application made to it in that behalf by a person aggrieved within 90 days of the passing of an order in any proceedings under this Ordinance by any Revenue or Consolidation Officer, and after giving such person an opportunity of being heard, call for the record of such proceedings.

(2) A Commissioner or Collector may call for the record of any case under this Ordinance pending before, or disposed of by any Revenue Officer or Consolidation Officer under his control.

(3) If in any case in which a Collector has called for the record under sub-section (2), he is of opinion that the proceedings taken or order made should be modified or reversed, he shall report the case with his opinion thereon for the orders of the Commissioner.

(4) The Board of Revenue may in any case called for under sub-section (1) and a Commissioner may in any case called for by him under sub-section (3), pass such order as it or he thinks fit:

Provided that no order shall be passed under this section reversing or modifying any proceedings or order of a subordinate Revenue Officer and affecting any question of right between private persons without giving those persons an opportunity of being heard.

[Underlining is supplied for emphasis]

From the bare perusal of above referred provision of law, it is manifestly clear that Sub-Section (3) casts duty upon the Collector that if in any case in which he has called for record under Sub-Section (2), he is of the opinion that proceedings taken or order made should be modified or reversed, he shall report the case with opinion thereof for

orders of the Commissioner. On the other hand, Sub-Section (4) envisages that the Board of Revenue and the Commissioner are obliged to give an opportunity of hearing to the effected persons before reversing or modifying the order of the subordinate revenue officer. Admittedly no opportunity of hearing, whatsoever, has been extended to the petitioners albeit in one of the villages, consolidation scheme was confirmed, which clearly offends the mandate of principle of natural justice as ordained in the famous maxim “*audi alteram partem*”. Reference to this effect can be made to ABDUL HAQUE INDHAR and others versus PROVINCE OF SINDH through Secretary Forest, Fisheries and Livestock Department, Karachi and 3 others (2000 SCMR 907).

7. Learned Law Officer has tried to take refuge under Rule 52 of the Punjab Consolidation of Holdings Rules, 1998 (hereinafter referred to as “**Rules, 1998**”) so as to defend the **Impugned Notification**. For ready reference and convenience, Rule 52 is reproduced below: -

52. Collection of Data:- (1) Subject to the provisions and procedure laid down under Section 13 of the Ordinance, if the Board of Revenue or the Commissioner on their own motion or on a petition by an aggrieved person, is seized of the issue of annulment of the entire consolidation scheme of the estate, or its sub-division action shall be taken as under:-

- (a) Total number of Khatas, land-owners and cultivable land of the estate shall be noted.
- (b) All the pending litigation with the Collector, Commissioner and the Board of Revenue shall be tabulated.
- (c) The number of Khatas/Scheme numbers, land owners, area of cultivable land challenged/involved in appeals, revision petitions and applications shall be tabulated and compared to the total numbers as in (a) above.
- (d) The issues and points of dispute, omissions and irregularities shall be listed giving specific facts.
- (f) The issues will be checked/got checked from the record and if necessary on the ground. The aggrieved persons shall be heard.

There is no cavil that the above noted rule deals with powers of the Board of Revenue or the Commissioner with regard to annulment of the consolidation scheme of the estate but it contemplates actions to be taken for the said purpose as ordained in sub-rules.

8. **Rules 1998** were framed in exercise of powers conferred upon Board of Revenue, Punjab in terms of Section 29 of the **Ordinance**. Rule 52 is component of the part dealing with the annulment of the consolidation scheme. For invoking Rule 52 due compliance has to be made to Section 13 of the **Ordinance** in the first instance. Moreover, Rule 53 provides remedial action which reads as under: -

53. Remedial Action:- (1) After the above exercise, an order giving reasons shall be passed directing to adopt one of the following courses of action:-

(a) The pending appeals and revision petitions be decided by the relevant Courts/officers on merits; or

(b) The issues pertaining to the affected land-owners and disputed land be settled through an order on the package of suo moto proposals; or

(c) If the irregularities and omissions cannot be rectified by following the courses at (a) and (b) above, the entire scheme may be annulled and estate or its sub-division reconsolidated.

(2) The order of annulment under rule (1)(c) shall contain:-

(a) Detail of specific omissions and irregularities avoiding reference in general terms as far as possible.

(b) Detailed directions/guidelines regarding reconsolidation, to avoid the repetition of defects and omissions in the last scheme.

(c) Directions to exclude, if necessary, certain area and land owners, not involved in litigation from the scope of reconsolidation giving reasons for the same.

(d) Findings fixing the responsibility on the officials for the irregularities and omissions necessitating the annulment of the scheme. It shall form part of the order and case shall simultaneously be referred to the relevant authority for appropriate action.

After having an overview of the relevant provisions dealing with the subject, it can safely be observed that the **Impugned Notification**

was issued in oblivious of the same. Invoking or referring to the provisions of the Land Revenue Act, 1967 more specifically Sections 4 (9), 40 and 116 for justifying the issuance of the **Impugned Notification** is not only highly uncalled for but amounts to overlapping two jurisdictions.

9. For the foregoing reasons, both these petitions are **allowed** as prayed for and the **Impugned Notification** dated 21st February, 2022 is **set-aside**, being illegal as well as unlawful. No order as to costs.

(MIRZA VIQAS RAUF)
JUDGE

Sajjad

APPROVED FOR REPORTING

JUDGE